

Ghanshyamdas Maheshwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 February 2010 · Writ-C No. 7909 of 2010 · **Writ disposed of; liberty to complete Clause 4.4 formalities.**

HEADNOTE

Writ complaining that a new-connection request was not being entertained was disposed of without a merits order. Petitioners were given liberty to approach the competent authority and complete the new-connection process in Clause 4.4 of the U.P. Electricity Supply Code, 2005. That authority is to entertain the request and decide it on merits in accordance with law at the earliest.

FACTUAL SUMMARY

The petitioners approached the High Court complaining that although they were ready to complete formalities for a new electricity connection in their premises, the licensee was not entertaining their request. Counsel for the distribution corporation opposed the writ, stating that the petitioners had not completed the necessary formalities and had approached the Court without justification. The corporation's counsel pointed to Clause 4.4 of the Electricity Supply Code, 2005 as laying down the complete procedure for obtaining a new connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — complete Clause 4.4 process

HOLDING

A writ complaining that a new-connection request is not being entertained will not yield a Court order on the connection. Petitioners may approach the competent authority and complete the process in Clause 4.4 of the Electricity Supply Code, 2005; that authority is to entertain the request and decide it on merits in accordance with law as expeditiously as possible. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Writ complaining that a new-connection request was not being entertained was disposed of without a merits order. Petitioners were given liberty to approach the competent authority and complete the new-connection process in Clause 4.4 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS HAD COMPLETED NEW-CONNECTION FORMALITIES AND WERE ENTITLED TO A CONNECTION

Left to the competent authority to decide on merits under Clause 4.4. ¶ 1